

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024**:

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CITY AND COUNTY OF SAN FRANCISCO,

Petitioner

VS.

ALEXANDER I CALDERON,

Respondent

) Case Number: FCS-06-339896

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) Other Parent/Mother filed a Request for Order on June 18, 2026, seeking a modification to the visitation schedule related to minor Angelina Calderon-Arias (02/02/11). In particular, Mother is seeking to terminate the Tuesday and Wednesday overnights. She is also asking for further mediation and any other orders necessary to protect the minor child's emotional and physical well-being.
- 2) On July 13, 2026, Father filed a Responsive Declaration, which has been read and considered by the Court.
- 3) On September 11, 2026, the parties attended FCS Mediation and were unable to reach any agreements.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) The parties are ordered to appear at the hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

REBECCA LYNN EBERSPAECHER,

Petitioner

VS.

DANIEL JOSEPH BUCKLEY,

Respondent

) Case Number: FCS-09-343996

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD SUPPORT FINDING RE ADULT DEPENDENT CHILD

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Rebecca Lynn Eberspaecher (Mother) and Respondent, Daniel Joseph Buckley (Father). There is one minor child subject to this proceeding Patrick (DOB: 7/26/2008).
- 2) On 3/6/17, a Stipulation and Order was filed, which provides that Father will pay monthly child support in the amount of \$5,000 to Mother commencing on 3/1/17 and continuing until Patrick “is 18 years of age or 19 years if he has not yet graduated from high school, dies, enters military service or is otherwise emancipated, whichever occurs earlier.” The parties agreed for Mother to be the sole trustee of the Patrick Ryan Wallek Buckley Irrevocable Trust dated 7/6/2012. Father further agreed to maintain a \$750,000 term life insurance policy, with Patrick as the sole beneficiary “so long as there is an obligation to pay child support.”
- 3) No pleadings were filed between March 2017 and June 2026.
- 4) Now on for hearing is Mother’s Request for Order filed 6/24/26 asking the Court to make a finding that Patrick is an adult child who is incapacitated from earning a living and without sufficient means pursuant to Family Code section 3910 and to order continued child support as

1 this Court deems appropriate. Mother asserts that Patrick was diagnosed with autism spectrum
2 disorder on 5/10/13. In 2025, Patrick was evaluated by Dr. Susan Martin, who determined that
3 Patrick “would require significant support throughout his adult life....” Currently, Patrick is
4 enrolled in Truckee Meadows Community College as a non-degree student. As a non-degree
5 student, Patrick does not qualify for financial aid or scholarships. Thus, Truckee Meadows
6 Community College will be paid for out of pocket. Patrick requires a one-on-one aide at
7 Community College who will likely be Mother. Mother has reached out to a reading specialist,
8 Dr. Julie Begbie-Striker, to work with Patrick on his reading. This would be an additional out of
9 pocket cost for Mother. Mother believes Patrick will soon qualify under Father’s Social Security
10 as a beneficiary. Mother asserts the amounts received through public benefits will be insufficient
11 to cover the totality of Patrick’s living expenses.

12 5) There is no Proof of Service on file indicating Father was served with the 6/24/26 Request for
13 Order.

14 6) Father did not file a Responsive Declaration.

15 7) Mother also did not file an Income and Expense Declaration.

16 **B. Findings and Order**

17 **1) The hearing on Mother’s 6/24/26 Request for Order is hereby CONTINUED to November 17,**
18 **2026 at 9 AM in Dept. 403.**

19 2) At least 16 Court days prior to the next hearing date, Mother shall file and serve an Income and
20 Expense Declaration as well as an address verification for Father under Family Code section 215.

21 3) At least 16 Court days prior to the next hearing date, Mother shall serve on Father:

- 22 a. Request for Order filed 6/24/26;
- 23 b. Mother’s Income and Expense Declaration;
- 24 c. Findings and Order After Hearing for the 9/24/26 hearing date;
- 25 d. Blank Responsive Declaration;
- 26 e. Blank Income and Expense Declaration;
- 27 f. Tentative Ruling Instructions

28 4) At least 9 Court days prior to the next hearing date, Father may file and serve a Responsive
29 Declaration and shall file and serve an Income and Expense Declaration.

1 5) At least 5 calendar days prior to the next hearing date, Mother may file and serve a Reply
2 Declaration.

3 6) At least 5 calendar days prior to the next hearing date, both parties shall file and serve proposed
4 Statements of Support Calculation.

5 7) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID SIU-KUNG MA,

Petitioner

VS.

JENNIFER RAMIREZ,

Respondent

) Case Number: FMS-25-387578

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner David Siu-Kung Ma (Father) and Respondent Jennifer Ramirez (Mother). The parties have one minor child: Liliana (DOB: 02/26/24).
- 2) At the prior 12/30/2025 hearing (Findings and Order After Hearing filed 7/2/2026), the Court ordered Mother to pay Father \$382 in monthly guideline child support in accordance with the XSpouse calculation attached to her Statement of Support Calculation filed 12/19/25. The Court notes that the XSpouse calculation shows that after Father pays Mother \$382 per month, Father will have 47% of the parties' combined net spendable income and Mother will have 53% of the parties' combined net spendable income.
- 3) Now on for hearing is Mother's Request for Order filed 8/7/26 seeking \$150,000 in need-based attorney's fees plus \$10,000 to retain a child development expert under Family Code 7605. Mother states she needs fees to cover \$92,589.50 in attorney fees and costs already incurred, \$47,410.50 for reasonably anticipated attorney's fees and costs to litigate the remaining issues in this case, and \$10,000 to retain a child development expert. Mother asserts Father has filed

multiple RFOs in this matter without any “new facts or law.” Mother further explains that Father has “propounded excessive and overburdensome discovery...”. Mother states she has exhausted her financial resources while Father has sufficient access to resources (e.g., investments, savings, and real property) and can afford to pay Mother’s attorney’s fees.

4) Attached to Mother’s Request for Order is a declaration by her attorney Adam Taylor. Mr. Taylor asserts the majority of Mother’s attorney’s fees incurred are in response to RFOs filed by Father and drafting discovery responses. Mr. Taylor’s billing rate is \$650 per hour and Paralegal, Darlene’s rate is \$325 per hour. Mr. Taylor has worked as a family law attorney for over 28 years whereas Darlene has worked in family law for 20 years. He provides that his billing rate “is commensurate with the billing rates for attorneys of similar skills and experience...”. He estimates \$133,575 for future costs incurred related to this matter. Additionally, Mr. Taylor provides that Mother has not initiated unreasonable litigation costs or propounded any discovery that was not directly related to the case.

5) On 8/7/26, Mother filed an Income and Expense Declaration. She is 30 years old and is employed by the United States Postal Service. Mother works 40 hours per week and earns on average \$7,546 per month. Mother reports earning average monthly overtime of \$1,136. Mother states she has \$29 in cash savings and no other assets. Mother states her estimated and actual monthly expenses total \$5,389. Mother state she has paid \$92,590 in attorney’s fees to date using savings and owes \$0.

6) On 8/19/26, Father filed a Responsive Declaration asking the Court to deny all of Mother’s requested relief. Father states there is no income disparity. Father asserts that the request to pay Mother’s attorneys fees is neither reasonable nor necessary. Lastly, Father states Mother has failed to identify why an expert is warranted.

7) On 8/19/26, Father filed an Income and Expense Declaration. Father is 37 years old and is employed by the United States Postal Service. Father works 40 hours per week and earns an average of \$8,071.68 per month. Father receives other income from “Sunday Premium” in the amount of \$373.19 on average per month. Father states he has \$242,718 in cash savings, \$42,480 in easily saleable investments, and personal property of \$53,000. Father’s total monthly expenses amount to \$3,192, of which \$757 is “paid by others.” Apart from paying \$410 per month for real

1 property taxes, \$300 per month for homeowner's insurance, and \$300 per month for maintenance
2 and repair, Father states that he has no housing expenses. Father states he has paid his attorney
3 \$19,280.25 in attorney's fees to date from his personal savings and owes \$0.

- 4 8) On 8/19/2026, Father filed a Memorandum of Points and Authorities. Father asserts that a request
5 for attorney fees does not warrant an automatic reimbursement of fees based on a disparity in
6 assets. Father contends the Court should examine Mother's billing records and determine whether
7 the amount requested is reasonably necessary. Mother's attorney's fees currently paid
8 (\$92,589.50) pose a five-fold disparity to Father's attorney's fees currently paid (\$19,280.25).
9 Father maintains that while his assets are relevant, they do not establish that Mother's requested
10 amount is appropriate, as Mother overstates residential assets available to Father. Father owns the
11 residence in question as tenants in common; therefore, only Father's ownership interest belongs
12 to him. Father asserts that anticipated future attorney fees require a particularized showing of
13 necessity rather than merely an estimate. Lastly, Father argues that Mother's separate request that
14 he advance \$10,000 for a child development expert should be "denied absent a more particular
15 showing of reasonable necessity."
- 16 9) On 8/19/2026, Father's attorney filed a declaration. Father asserts Mother previously sought
17 attorney fees to which the court denied (due to failure to plead requisite facts). Additionally, the
18 fee requested by Mother are not reasonable or necessary. Father states that Mother
19 mischaracterizes his financial circumstances as Mother and Father earn similar incomes. Father
20 states that Mother has contributed to the cost and duration of the current litigation as Mother's
21 own billing records provide that fees were incurred through contested litigation of both parties.
- 22 10) On 9/16/2026, Mother filed a Reply Declaration. Mother asserts that Father maintains
23 unencumbered personal property (i.e., \$242,718 in cash, \$42,480 in stocks, \$53,000 in other
24 personal property) while living with zero debt, mortgage, and no vehicle financing. Thus,
25 demonstrating a total net worth disparity. Mother further asserts Father's lower legal bills are
26 attributable to frequently being the moving party throughout litigation. Lastly, Mother asserts that
27 a child development assessment is crucial for Mother's and Father's daughter, Liliana. Mother
28 has observed Liliana suffer severe emotional distress and difficulty adjusting to the current
29 custody schedule.

1 **B. Findings and Order**

- 2 1) The Court finds there is a disparity in access to funds to pay legal fees and that Father has the
3 ability to pay for his own attorney's fees in addition to those of Mother. The Court hereby awards
4 to Mother \$20,000 for attorney's fees and costs incurred to date and through entry of stipulated
5 Judgment, if the parties are able to enter into a stipulated Judgment. The Court's jurisdiction to
6 award additional attorney's fees and costs to Mother if this case is eventually set for trial is
7 reserved.
- 8 2) Mother's request for an additional \$10,000 to retain a child development expert is DENIED
9 without prejudice to a future request. The Court does not find that it is necessary for Mother to
10 retain a child development expert in this case at this time.
- 11 3) Mother's attorney shall prepare the Findings and Order After Hearing.
- 12 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
13 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
14 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
15 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
16 proposed order after hearing directly to the court. Failure to submit the order after hearing within
17 10 days may allow the other party to prepare a proposed order and submit it to the court in
18 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON PADUA,

Petitioner

VS.

RYAN TOLENTINO,

Respondent

) Case Number: FLD-21-396810

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Allison Padua (Mother) and Respondent, Ryan Tolentino (Father).
They share three minor children named Roman Tolentino (DOB: 04/24/15); Alyssa Tolentino
(02/23/17); and Aubrey Padua (04/15/18).
- 2) On July 23, 2026, Father filed an emergency Request for Order (RFO) seeking, what appears to
this Court as an enforcement of the orders contained in stipulation filed July 2, 2026 a
modification of the existing custody and visitation (i.e., parenting time) orders.
- 3) On July 23, 2026, the Court set the matter for hearing on August 17, 2026 and issued the
following temporary orders, pending hearing: "Allison Padua is ordered to deliver the 3 minor
children, Roman, Alyssa and Aubrey to Ryan Tolentino on July 24, 2026 at 7:00 p.m. at 431
Sawyer Street, San Francisco, CA. Respondent shall have physical custody of the 3 minor
children until August 9 at 4:00 p.m.

1 4) On August 17, 2026, the matter was heard on the Court's Readiness calendar. The Court
2 referred the parties to Family Court Services (FCS) Mediation on August 18, 2026 and set a
3 return hearing for September 24, 2026.

4 5) As of this Court's review, Mother has not filed any opposition to Father's motion.

5 **B. Findings and Order**

6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child(ren) is the United States.

10 2) The Court will not make any additional orders.

11 3) All prior and existing orders shall remain in full force and effect.

12 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JACK SPILBERG,

Petitioner

VS.

BROOKE SCHUMACHER,

Respondent

) Case Number: FDI-20-793956

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jack Spilberg (Father) and Respondent Brook Schumacher (Mother). They share one minor child: Bodie (DOB: 11/13/13).
- 2) On 12/30/21, the Court entered a Judgment of Dissolution, Article 11 of which reserves jurisdiction over child support and includes orders regarding add-on expenses. The Judgment also terminates jurisdiction to award spousal support to either party.
- 3) On for hearing is Father's Request for Order filed on 7/7/26, seeking modification of child support based on imputation of Mother's earning capacity because Mother has employment history in professional roles and is actively job searching. Father states Mother has refused to provide an updated Income and Expense Declaration.
- 4) On 7/7/26, Father filed an Income and Expense Declaration. Father is 48 years old and has been employed as a Senior Account Executive since 10/20/2025. Father works about 40 per week and is paid \$11,923.08 per month. Father claims Mother can earn full-time California minimum wage. Father states he has \$12,235.66 in cash savings and \$5,763 in stocks, bonds, and other

1 asserts he could easily sell. Father states he has a 50% timeshare of Bodie. Father did not attach
2 paystubs to his Income and Expense Declaration.

3 5) On 7/31/26, Father filed a Proof of Personal Service indicating Mother was personally served
4 with the Request for Order and supportive pleadings on 7/11/26.

5 6) On 8/6/26, the court continued Father's 7/7/2026 Request for Order to 9/24/26 to allow Mother
6 additional time to file a response and updated Income and Expense Declaration.

7 7) Mother has not filed a Responsive Declaration or Income and Expense Declaration to date.

8 8) Father filed an additional Request for Order on 7/31/26 seeking clarification of custody orders.

9 The parties have been ordered to participate in mediation on 10/06/26, and a hearing has been set
10 for 11/3/26. Neither party is seeking to modify their 50% timeshare.

11 **B. Findings and Order**

12 1) The Court finds that Mother has the ability and opportunity to earn full-time minimum wage
13 income, and that imputation of income to Mother is in Bodie's best interest. The Court therefore
14 finds good cause to impute full-time minimum wage income to Mother of \$2,929 (based on the
15 \$16.90 per hour minimum wage rate in Moraga where Mother resides).

16 2) Effective 7/7/2026 (the date Father filed his Request for Order), Father shall pay Mother \$1,048
17 per month in guideline child support in accordance with the XSpouse calculation attached hereto
18 and incorporated.

19 3) The Court finds Father owes Mother child support arrears in the amount of \$2,805 for the period
20 7/7/2026 – 9/30/2026. Commencing 10/1/2026, Father shall pay Mother an additional \$467.50
21 per month by the 1st of each month for a period of 6 months to satisfy these arrears.

22 4) Based on the foregoing, Father shall pay Mother $\$1,048 + \$467.50 = \$1,515.50$ per month by the
23 1st of each month between 10/1/2026 – 3/31/2027, and \$1,048 per month commencing 4/1/2027.

24 5) Neither party requested a modification of the child support add-on provisions set forth in the
25 parties' Judgment and therefore those provisions shall remain in full force and effect.

26 6) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	1	0	2026				
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	11402	11402
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	11923	2929	8721		Payment cost/benefit	-1048	-1048
Self-employed income	0	0	Mother		Net spendable income	7673	7673
Other taxable income	0	0	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	67%	67%
Other nontaxble income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	3202	3202
401(k) employee contrib	0	0	S.Clara SS		Dep. exemption value	0	0
Adjustments to income	0	0	Total		# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	8463	8463
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	1048	1048
Other medical expense	0	0			Net spendable income	3729	3729
Property tax expense	0	0	Proposed		Change from guideline	0	0
Ded interest expense	0	0	Tactic 9		% of combined spendable	33%	33%
Charitable contributions	0	0	CS		% of saving over guideline	0%	0%
Misc tax deductions	0	0	1048		Total taxes	249	249
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0	0
Mandatory retirement	0	0	1048		Net wage paycheck	2361	2361
Hardship deduction	0 *	0 *	Saving				
Other GDL deductions	0	0	Releases				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	0	0	0	Father	1048	Father	1048	Father
	50 - 50	0	0	0	Father	1048	Father	1048	Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRANDA DEVLIN,

Petitioner

VS.

TAD DEVLIN,

Respondent

) Case Number: FDI-21-794941

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, FAMILY COURT 3044 PRESUMPTION; REQUEST FOR ORDER FOR
CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD SUPPORT, FAMILY
COURT 3044 PRESUMPTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miranda Devlin (Mother) and Respondent Tad Devlin (Father). They share two minor children: Chloe (DOB: 4/25/12) and Paige (DOB: 4/15/16).
- 2) Per the Findings and Order After Hearing (FOAH) filed 11/21/24, Mother had parenting time with the minor children every Tuesday after school until Wednesday morning drop off at school and every other weekend from Friday after school until Sunday at 5:00 PM.
- 3) On 11/27/24, the Court granted a Domestic Violence Restraining Order (DVRO) after a 6-day trial. Father is the protected party, and Mother is the restrained party. The minor children are not listed as protected parties; however, Father was awarded sole legal and sole physical custody.
- 4) On 10/8/25, Mother filed a Request for Order seeking: (a) a finding that Mother rebutted the Family Code section 3044 presumption against joint custody; (b) joint legal and physical custody;

1 (c) modification of the parenting time orders to increase her time an extra day during the week
2 and one extra night every other weekend; (c) modification of the 2/11/25 child support orders to
3 guideline child support. Mother attached a proposed holiday schedule to her Request for Order.

4 5) On 10/8/25, Mother filed an Income and Expense Declaration.

5 6) On 11/17/25, the parties appeared for Readiness hearing. The matter was scheduled for mediation
6 with Family Court Services on 1/6/26 and regular hearing in Dept. 403 on 2/3/26.

7 7) On 11/5/25, Father filed a Responsive Declaration in opposition to Mother's Request for Order
8 asking the Court to deny Mother's requested relief. However, Father states that he is agreeable to
9 Mother having the minor children an extra weeknight (Tuesday and Wednesday night until
10 Thursday morning school drop-off) on weekends that Mother does not have parenting time.

11 8) On 11/5/25, Father filed an Income and Expense Declaration.

12 9) On 11/12/25, Mother filed a Reply Declaration reiterating her requests.

13 10) On 1/6/26, the parties attended FCS mediation but did not reach an agreement.

14 11) On 1/27/26, Mother filed a supplemental declaration in support of her position.

15 12) On 2/3/26, the parties appeared at hearing, and Father requested a long-cause (i.e., evidentiary)
16 hearing. The Court did not adopt any portion of its Tentative Ruling issued for the 2/3/26 hearing
17 and set all pending issues for long-cause hearing on 5/21/26.

18 13) On 5/6/26, Mother filed an Income and Expense Declaration.

19 14) On 5/21/26, the parties appeared at the long-cause hearing and the Court, in pertinent part: (a)
20 determined Mother rebutted the Family Code section 3044 presumption against joint custody; (b)
21 granted Mother's request for joint legal custody; (c) increased Mother's parenting time with the
22 minor children from Tuesdays pick-up afterschool to Thursday drop off at school with alternate
23 weekends; and (d) ordered the parties to attend FCS Mediation on 6/18/26. The Court made
24 additional orders, including continuing the matter to 6/30/26 for issues related to child support,
25 summer schedule, vacation schedule, and make-up time.

26 15) On 6/18/26, the parties attended FCS mediation and were able to reach a partial agreement.

27 16) At the prior 6/30/26 hearing, the Court ordered that Chloe shall attend Lowell High School for the
28 upcoming 2026-2027 school year, Paige shall attend Saint Peter and Paul Elementary and Middle
29 School through 8th grade, and all outstanding issues are continued to 7/30/26. The Court ordered

each party to serve supplemental declarations to detail their position on the remaining issues at least ten days before the hearing.

17) On 7/20/26, Mother filed a supplemental declaration requesting guideline child support and spousal support retroactive to 2/1/26 based on Chloe living with Mother full time and Paige being on a 2-2-5 parenting time schedule. Mother states her unemployment and increased parenting time has resulted in depletion of funds.

18) On 7/20/26, Mother filed an Income and Expense Declaration.

19) On 7/20/26, Father filed an Income and Expense Declaration.

20) At the prior 7/30/26 hearing, Father objected to Judge Pro Tem, Judith Harding hearing the matter; therefore, the matter was continued to 08/20/26.

21) On 8/7/26, Mother filed an Income and Expense Declaration.

22) On 8/10/26, Father filed supplemental declaration in opposition to Mother's request for modification of support. Father seeks enforcement of prior support orders and requests Mother be ordered to pay 50% of the school tuition costs for the minor children. Father requests the Court remind Mother not to involve the minor children in these court proceedings.

23) On 8/10/26, Mother filed a supplemental declaration reiterating her request for modification of support. It appears to the Court that Mother may have accidentally filed this supplemental declaration again on 8/11/26.

24) On 08/20/26, the matter was heard and the Court issued the following orders:

- a. The tentative ruling is not adopted as the order of the Court. Parties shall submit, file, and serve a brief with up to 10 pages within 10 days or by 09/14/26 before next hearing.

25) On 09/14/26, Mother filed a declaration, which has been read and considered by the Court.

26) On 09/14/26, Mother filed an updated Income and Expense Declaration.

27) On 09/14/26, Father filed a declaration, which has been read and considered by the Court.

B. Findings and Order

1) As to any pending Child Custody/Visitation issues raised in Mother's October 8, 2025, Request for Order - those remaining/pending requests are ALL DENIED. The Court will not make any additional orders related to child custody and visitation, which were not resolved by the 05/21/26 long-cause. Both parties are hereby ordered to follow and comply with Judge Diesman's orders.

- 1 2) As to Mother's request to modify spousal support raised in Mother's supplemental declaration,
2 such request is DENIED. This issue is not properly before the Court. If Mother wishes to modify
3 spousal support, Mother must file a separate Request for Order pursuant to Family Code 213.
- 4 3) Mother's request for modification of the 2/11/25 support order is GRANTED retroactive to
5 5/1/26 as the Court finds Mother met her burden of showing a change in circumstances
6 warranting a modification of support given that Mother's employment status and the parties'
7 parenting time changed. See *Marriage of Bardzik* (2008) 165 CA 4th 1291, 1303-1304.
- 8 4) For the period of 5/1/26 (date on which Mother's employment ended) - 5/21/26 (date on which
9 the Court ordered a 2-2-5 parenting time schedule), and in accordance with "XSpouse A"
10 attached hereto and incorporated herein, Father owes Mother \$3,438 in guideline monthly child
11 support.
- 12 5) For the period of 5/21/26 (date on which the Court ordered a 2-2-5 parenting time schedule) -
13 8/14/26 (date on which Mother's unemployment ended), and in accordance with "XSpouse B"
14 attached hereto and incorporated herein, Father owes Mother \$4,663 in guideline monthly child
15 support.
- 16 6) Effective 8/14/26 (date on which Mother's unemployment ended) – current, and in accordance
17 with "XSpouse C" attached hereto and incorporated herein, Father owes Mother \$2,983 in
18 guideline monthly child support.
- 19 7) Father owes Mother \$2,328.90 in support arrears for the period of 5/1/26 – 5/21/26 (\$110.90/day
20 for 21 days), plus \$11,932 in support arrears for the period of 5/21/26 – 8/14/26 (\$1,109 for the
21 rest of May + (2,983 x 4) for June, July, August, and September). This means that Father owes
22 Mother a total of \$14,260.90 in support arrears less any support Father already paid during this
23 period. The parties are ordered to meet and confer regarding the payment of arrears to account for
24 and subtract: (a) any support Father already paid during this time, and (b) any amount of support
25 overpayment Mother was previously ordered to reimburse Father. Should meet and confer efforts
26 fail, the Court will reserve jurisdiction over calculation of arrears to the time of trial.
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- 1 8) The XSpouse reports are based on the parties' respective Income and Expense Declarations
2 (Mother's filed 5/6/26 and 7/20/26 and 9/14/26 and Father's filed 7/20/26) and the following
3 distinctions:
- 4 a. XSpouse A is based on Mother's unemployment and 50% parenting time with Chloe and 28%
5 parenting time with Paige,
6 b. XSpouse B is based on Mother's 50% parenting time with Chloe and 50% parenting time
7 with Paige.
8 c. XSpouse C is based on Mother's 50% parenting time with Chloe and 50% parenting time
9 with Paige.
10
- 11 9) Father's request that Mother be ordered to pay for 50% of the school tuition, extracurricular
12 activities and camps (including but not limited to summer camps) and sports costs of both minor
13 children is DENIED.
- 14 10) Father's request that the Court deviate from guideline child support based on special
15 circumstances to avoid windfall to Mother is DENIED.
- 16 11) Father's request that the Court recalculate child support per guideline based on the 50/50
17 custody/visitation orders is GRANTED.
- 18 12) Father's request that the Court require Mother and 14-year-old child to abide by the Court order
19 for 50/50 custody and visitation is GRANTED. Both parties are expected to follow the existing
20 court orders.
- 21 13) Mother is admonished not to involve the minor children in these court proceedings.
- 22 14) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	1	1	2026				
% time with NCP	49.99 %	28.00 %			Comb. net spendable	20149	20149
Filing status	HH/MLA	SINGLE	GUIDELINE		Percent change	0%	0%
# exemptions	3	1	Nets(adjusted)		Father		
Wages+salary	30000	0	Father	20899	Payment cost/benefit	-3438	-3438
Self-employed income	0	0	Mother	-750	Net spendable income	17461	17461
Other taxable income	2562	0	Total	20149	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	87%	87%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	3438	Total taxes	11634	11634
401(k) employee contrib	0	0	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	3438	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	18469	18469
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	29	750			Payment cost/benefit	3438	3438
Other medical expense	0	0			Net spendable income	2688	2688
Property tax expense	1435	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	13%	13%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	3438	Total taxes	0	0
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	3438	# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	750	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	60 - 40	750	0	0	Father	3438	Father	3438	Father
	72 - 28	375	0	0	Father	527	Father	527	Father
	49 - 51	375	0	0	Father	2911	Father	2911	Father

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	2	0	2026				
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	20149	20149
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	3	1	Support		Father		
Wages+salary	30000	0	Father	20899	Payment cost/benefit	-4663	-4663
Self-employed income	0	0	Mother	-750	Net spendable income	16235	16235
Other taxable income	2562	0	Total	20149	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	81%	81%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	4663	Total taxes	11634	11634
401(k) employee contrib	0	0	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	4663	# withholding allowances	0w	0w
SS paid prev marriage	0	0	Settings changed		Net wage paycheck	18469	18469
CS paid prev marriage	0	0			Mother		
Health insurance	29	750			Payment cost/benefit	4663	4663
Other medical expense	0	0			Net spendable income	3913	3913
Property tax expense	1435	0	Proposed		Change from guideline	0	0
Ded interest expense	0	0	Tactic 9		% of combined spendable	19%	19%
Charitable contributions	0	0			% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	4663	Total taxes	0	0
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	4663	# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	750	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	750	0	0	Father	4663	Father	4663	Father
	50 - 50	375	0	0	Father	1749	Father	1749	Father
	50 - 50	375	0	0	Father	2915	Father	2915	Father

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		Guideline	Proposed
#of children	2	0	2026					
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable		26716	27084
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change		0%	17%
# exemptions	3	1	Father		Father			
Wages+salary	30000	10000	20899		Payment cost/benefit		-2799	-2755
Self-employed income	0	0	Mother		Net spendable income		18099	18144
Other taxable income	2562	0	Total		Change from guideline		0	45
TANF+CS received	0	0	Support		% of combined spendable		68%	67%
Other nontaxable income	0	0	Addons		% of saving over guideline		0%	12%
New spouse income	0	0	Guideln CS		Total taxes		11634	11715
401(k) employee contrib	0	0	S.Clara SS		Dep. exemption value		0	0
Adjustments to income	0	0	Total		# withholding allowances		0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck		18469	18469
CS paid prev marriage	0	0	Settings changed		Mother			
Health insurance	29	1318			Payment cost/benefit		2799	3122
Other medical expense	0	0			Net spendable income		8617	8940
Property tax expense	1435	0	Proposed		Change from guideline		0	323
Ded interest expense	0	0	Tactic 9		% of combined spendable		32%	33%
Charitable contributions	0	0	CS		% of saving over guideline		0%	88%
Misc tax deductions	0	0	2674		Total taxes		2864	2416
Qual bus income ded	0	0	SS		Dep. exemption value		0	0
Required union dues	0	0	Total		# withholding allowances		0	0
Mandatory retirement	0	0	Saving		Net wage paycheck		6824	6824
Hardship deduction	0 *	0 *	Releases					
Other GDL deductions	0	0	Released to Mother					
Child care expenses	750	0						

Father pays Guideline CS, Proposed CS

Mother pays Addons

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	750	0	184	Mother	2983	Father	2799	Father
	50 - 50	375	0	96	Mother	1119	Father	1023	Father
	50 - 50	375	0	88	Mother	1865	Father	1777	Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISMARA ZUGUEY MENDOZA AMEZCUA,

Petitioner

VS.

EMMANUEL ROBERTO MENDOZA

GONZALEZ,

Respondent

) Case Number: FDI-22-797316

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, IN THE ALTERNATIVE SET ASIDE DEFAULT JUDGMENT PER CCP 473.5

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

**The parties are ordered to appear. The parties may appear in person in Department 403 or
remotely by Zoom video. If a party chooses to appear by video, that party must abide by the
Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.**

A. Procedural History

- 1) The parties are Petitioner Ismara Amezcua (Mother) and Respondent Emmanuel Gonzalez (Father). They share one minor child named Yaretzi Mendoza (08/16/20).
- 2) On May 15, 2026, Father filed a Request for Order in which he seeks the following orders:
 - a. Set Aside Default Judgment entered on 04/07/25; or, in the alternative
 - b. Modification of Child Custody;
 - c. Modification of Visitation; and
 - d. Modification of Child Support (DCSS is involved in this action).
- 3) On May 15, 2026, Father filed an Income and Expense Declaration.

1 4) On June 18, 2026, Mother filed a Responsive Declaration in which she is asking this Court to
2 deny all of the relief requested by Father.

3 5) On June 12, 2026, a Declaration was filed by Process Server, Wilfredo Mendez, who has declared
4 under penalty of perjury that he served Father in Court after a hearing conducted on January 12,
5 2023.

6 6) On August 11, 2026, the Court continued the matter to September 24, 2026 to address child
7 custody and visitation issues. The Court gave Father an opportunity to provide the Court and
8 counsel for Mother with any documents showing a change in circumstances, including
9 certification of completing a 52-week Batterer's Intervention Program.
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11 **B. Findings and Order**

12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child(ren) is the United States.

16 **2) Appearances required.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LISA ABDILOVA ANDERSEN,

Petitioner

VS.

ALEXANDER KARL ANDRESEN,

Respondent

) Case Number: FDI-24-800304

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF PETITIONERS AMENDED REQUEST FOR
ENFORCING CUSTODY ORDERS FOR RECOMMENDING MEDIATION (DECLARATIONS)
PETITIONER'S AMENDED REQUEST TO ENFORCE CUSTODY ORDER FOR RECOMMENDING
MEDIATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Lisa Abdilova Andresen (Mother) and Respondent, Alexander Karl Andresen (Father). They share one minor child named Cody Andresen (06/18/22).
- 2) On September 18, 2024, the Court issued the following order in related case number FDV-24-817813: "The parties shall engage a recommending mediator to assist with further implementing a parenting plan and resolving any parenting disputes raised by either parent. The parties shall equally advance the cost of the recommending mediator and the court shall retain jurisdiction over the final allocation of costs. If the parties have not signed a stipulation appointing a recommending mediator prior to the expiration of this temporary restraining order, the Court shall resolve any disputes related to the recommending mediator's appointment."

- 3) On August 10, 2026, Mother filed a Request for Order seeking enforcement of prior Court order appointing Ellen Mauldin, LMFT as their child custody recommending counselor.
- 4) On September 14, 2026, the Court held a Readiness hearing and did not refer the parties to FCS Mediation. The Court continued the matter to September 24, 2026, and ordered counsel for Respondent to serve and file his Responsive Declaration no later than 4:00 p.m., on September 23, 2026.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Mother's motion is DENIED in its entirety. It is clear, from Mother's pleading, that she and Father are not in complete agreement as to the scope, or the necessity of a recommending mediator. As such, this Court cannot order the parties to participate in "Recommending Mediation," unless and until both parties have a complete agreement. If the parties are able to reach a complete agreement, they may file a proposed stipulation and order with this Court. This Court will not enforce the order filed September 18, 2024 related to the appointment of a recommending mediator, without a complete agreement.
- 3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAGNOLLY BAUTISTA,

Petitioner

VS.

FRANKLIN MICHAEL TAMAYO ALVAREZ,

Respondent

) Case Number: FDV-25-818754

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Magnolly Bautista (Mother) and Respondent Franklin Michael Tamayo Alvarez (Father). They share one minor child: Thiago (DOB: 4/12/15).
- 2) On 11/7/25, Mother filed a Request for Domestic Violence Restraining Order (DVRO). Mother also checked the box for child support in her DVRO request.
- 3) On 12/31/25, the Court granted a Restraining Order After Hearing for a period of one-year wherein Mother is the protected party and Father is the restrained party. The restraining order grants Mother sole legal and physical custody of Thiago and provides that Thiago will be in Father's care on alternative weekends, Saturdays and Sundays from 10 AM to 5 PM.
- 4) At the 7/9/26 hearing (Findings and Order After Hearing filed 9/1/2026), the Court ordered Father to pay Mother \$674 per month in child support commencing 7/1/2026 (based on Mother's proposed XSpouse calculation attached to her 5/21/26 declaration) and reserved jurisdiction to recalculate child support to 11/7/2025 (the date Mother filed her Request for DVRO). The Court notes that Mother's proposed XSpouse calculation includes Mother's self-reported monthly

1 income of \$3,024, imputation of San Francisco full-time minimum wage income of \$3,399 per
2 month, to Father and a 4% timeshare for Father. A review hearing was set for 8/19/26, which
3 was later continued to 9/24/26.

4 5) On 7/29/26, Mother filed an Income and Expense Declaration. Mother states she is 27 years old
5 and is employed at Azuncion Limpieza as a domestic worker. Mother works 24 hours per week
6 and earns \$360 per week. Last month Mother earned \$1,440. The Court notes these figures differ
7 from the \$3,024 in average monthly income Mother reported earning in her declaration filed
8 5/21/2026. Mother states Father's income is unknown. Mother has \$0 in her cash and checking
9 accounts. Mother's monthly estimated expenses total \$2,815. Mother states the parties' son is in
10 her care 96% of the time. Mother did not attach any documentation regarding her pay to her
11 Income and Expense Declaration.

12 6) On 8/06/26, Father filed an Income and Expense Declaration. Father is 33 years old and has
13 been employed as an independent contractor for Amazon since 10/26/2025. Father works 20
14 hours per week and is paid \$2,000 per month. Father states his monthly income on average is
15 \$2,000. Father states that he earns average monthly bonuses of \$8,260. Father asserts there has
16 been a change in his income. Father states he lost his previous job and is now working as an
17 independent contractor. Father states his wages vary every week because his hours are
18 inconsistent. Father claims Mother earns \$24.26 per hour and has a monthly gross income of
19 \$3,913.60. Father states he has \$1,073 in cash savings and \$10,000 in personal property.
20 Father's states that his estimated and actual monthly expenses total \$3,555. Father states his total
21 debts are \$22,000. Father states he has bi-weekly visits with Thiago on Saturday and Sunday
22 from 8:00 AM to 5:00 PM. Father did not attach documentation but states he will bring paystubs
23 to the next scheduled court date if Father is working.

24 7) There is no proof of service on file evidencing Mother was served with Father's Income and
25 Expense Declaration.

26 **B. Findings and Order**

27 1) The Court does not find good cause to modify its prior order requiring Father to pay Mother \$674
28 per month in guideline child support in accordance with the XSpouse calculation attached to
29 Mother's 5/21/26 declaration, which includes an imputation of full-time minimum wage income

1 to Father. Father shall continue to pay Mother \$674 per month in guideline child support by the
2 1st of each month.

3 2) The Court finds good cause to maintain the imputation of full-time minimum wage income to
4 Father. The Court finds that Father has the ability and opportunity to earn full-time minimum
5 wage income, and this order is in the child's best interests, considering that the child is in Father's
6 care only 4% of the time.

7 3) The Court makes the child support order effective 11/7/2025 (the date Mother filed her Request
8 for DVRO). The Court finds that Father owes to Mother child support arrears in the amount of
9 \$5,235 for the period 11/7/2025 – 6/30/2026. Commencing 10/1/2026, Father shall pay Mother an
10 additional \$218.13 per month by the 1st of each month for a period of 24 months to satisfy these
11 arrears.

12 4) Based on the foregoing, Father shall pay Mother $\$674 + \$218.13 = \$892.13$ per month by the 1st
13 of each month between 10/1/2026 – 10/31/2028, and \$674 per month by the 1st of each month
14 commencing 11/1/2028.

15 5) The Court will prepare the Findings and Order After Hearing.
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Guideline Summary

Monthly Figures

Fixed Shares	Father	Mother	Monthly Figures		Cash Flow	
Number of children	0	1	2026		Combined net spendable	5809
Percent time with NCP	4.16%	0.00%				
Filing status	SINGLE HH/MLA		Nets (adjusted)		Father	
Number of exemptions	1	2			Payment cost/benefit	-674
Wages and salary	3399	3024	Father	2828	Net spendable income	2154
Self employed income	0	0	Mother	2981	Federal income tax	226
Other taxable income	0	0	Total	5809	Federal employment tax	260
TANF CS received	0	0	Support		State income tax	44
Other nontaxable income	0	0	Addons	0	State employment tax	41
New spouse income	0	0	Guideln CS	-674	Total taxes	571
Employee 401-k contribution	0	0	S.Clara SS	0	Federal filing status	SINGLE
Adjustments to income	0	0	Total	-674	State filing status	SINGLE
SS paid prev marriage	0	0			Mother	
CS paid prev marriage	0	0			Payment cost/benefit	674
Health insurance	0	0			Net spendable income	3654
Other medical expenses	0	0			Federal income tax	-293
Property tax expenses	0	0			Federal employment tax	231
Ded interest expense	0	0			State income tax	0
Contribution deduction	0	0			State employment tax	36
Misc tax deductions	0	0			Total taxes	-25
Qualified business income deduction	0	0			Federal filing status	HH/MLA
Required union dues	0	68			State filing status	HH/MLA
Mandatory retirement	0	0				
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				

FC 4055 checking: ON

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	4 - 96	0	0	0 Father	674 Father	674 Father
0000-00-00	4 - 96	0	0	0 Father	674 Father	674 Father